

Court No. - 48

Case :- WRIT - C No. - 21256 of 2022

Petitioner :- Pramod Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Naresh Chandra Tripathi, Krishna Kant Pandey, Suchita Tripathi

Counsel for Respondent :- C.S.C., Alok Mishra

Hon'ble Suneet Kumar, J.

Hon'ble Syed Waiz Mian, J.

Sri Pawan Kumar Shukla, holding brief of Sri Alok Mishra, learned counsel for the respondent on a specific query, does not have instructions in the matter.

In view of the above, the respondent no. 3 is directed to appear in person along with record and to show cause on the date fixed.

List on 22.8.2022 as fresh.

Order Date :- 8.8.2022

HR

Court No. - 21

Case :- WRIT - C No. - 21256 of 2022

Petitioner :- Pramod Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Naresh Chandra Tripathi, Krishna Kant Pandey, Suchita Tripathi

Counsel for Respondent :- C.S.C., Alok Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Ram Manohar Narayan Mishra, J.

The matter pertains the Electricity Department and is not cognizable by this Bench.

As jointly prayed, office is directed to place the instant matter before the appropriate Bench as fresh on 29th August, 2022.

(R.M.N. Mishra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 22.8.2022

Kamarjahan

Court No. - 29

Case :- WRIT - C No. - 21256 of 2022

Petitioner :- Pramod Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Naresh Chandra Tripathi, Krishna Kant Pandey, Suchita Tripathi

Counsel for Respondent :- C.S.C., Alok Mishra

Hon'ble Manoj Misra, J.

Hon'ble Mohd. Azhar Husain Idrisi, J.

We have heard Sri N.C. Tripathi for the petitioner; learned Standing Counsel for the respondent no.1; and Sri Alok Mishra for the respondents 2 and 3.

The prayer in this petition is to direct the respondent no.3 not to provide a new connection to the respondent no.4 from the supply point of the service line of petitioner's tubewell.

The case of the petitioner is that for the purposes of electricity supply to a 10 H.P. tubewell installed by the petitioner. The petitioner has borne the expenses of the electricity line and therefore that electricity service line should not be utilized to provide electricity supply to others by way of fresh connections.

In support of his case, the petitioner has cited clause 3.4 of the U.P. Electricity Supply Code, 2005, which deals with supply through independent feeders. It has been argued that when a separate feeder has been provided to the consumer at his cost, no fresh consumer should be allowed to stake a claim for electricity supply from that point.

Sri Alok Mishra, who appears for the respondent no.3, submits that clause 3.4 applies to electricity loads of 1000 KVA or above or 500 KVA or above. It would not apply to supply of electricity up to 10 H.P. He places reliance on clause 4.29 of the U.P. Electricity Supply Code, 2005 which enables use of service line, the cost of which has been borne by a consumer, to supply electricity to other consumers provided supply to the consumer, who has paid for them, is not affected.

Sri Mishra submits that as, by now, no supply has commenced therefore there is no material for the petitioner to complain with regard to his supply being affected on account of supply to the other consumer. He submits that the petition is therefore premature in so far as the applicability of clause 4.29 is concerned.

In response to the above submission, Sri N.C. Tripathi, learned counsel for the petitioner, submits that as the petitioner has already raised an objection, his objection should be addressed first before the supply is resumed to the fourth respondent.

We have considered the rival submissions and have considered the provisions of the U.P. Electricity Supply Code, 2005, which have been cited by the counsel for the parties.

Upon a plain reading of clause 3.4 of the U.P. Electricity Supply Code, 2005 it appears that it relates to high load supplies and does not cover supplies of loads of 10 H.P. or so as is the case here, inasmuch as, the supply to the petitioner is of 10 HP load which is for running a private tubewell. Whereas, as per clause 4.29 of the Electricity Supply Code, 2005 the licensee is entitled to use the service line and other apparatus to give supply to other consumers provided that the supply to the consumer, who has paid for them, is not affected. As the supply to the other consumer is yet to commence, it is premature to assume that the supply of the petitioner would get affected by supply of electricity to the respondent no.4. We, therefore, decline to entertain this petition at this stage by leaving it open to the petitioner to raise his grievance as and when the supply to the petitioner gets affected on account of supply to the respondent no. 4.

Subject to above, the petition is **dismissed**.

Order Date :- 29.8.2022

Sunil Kr Tiwari